IT is hereby notified, in terms of section 80 of the Labour Act [*Chapter 28:01*], that the Minister of Public Service, Labour and Social Welfare has approved the publication of the Collective Bargaining Agreement set out in the Schedule, which amends the agreement published in Statutory Instrument 102 of 2014.

The agreement has been registered in terms of section 79 of the Act.

SCHEDULE

EMPLOYMENT COUNCIL FOR THE WELFARE AND EDUCATIONAL INSTITUTIONS

COLLECTIVE BARGAINING AGREEMENT

*Further Agreement*

This further agreement, made and entered into between the Welfare and Educational Institutions Employers Association (employer party), of the one part, and the Zimbabwe Educational, Scientific Social and Cultural Workers' Union (employee party), of the other part, being parties to the National Employment Council for the Welfare and Educational Institutions, shall be read as one with the agreement published in Statutory Instrument 102 of 2014 (hereinafter referred to as "the principal agreement").

1. The principal agreement is amended by the repeal of section 31 and the substitution of—

"*Resolution of industry disputes*

31. (1) A designated agent appointed in terms of the Act may—

(a) require any employer for which the Council is registered—

(i) to grant him or her reasonable access to his or her employees for the purpose of advising



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and assisting them in relation to their rights of employment;

(ii) to grant him or her reasonable access to his or her premises and to the books, records and other documents relating to his or her employment for the purpose of examining and ascertaining matters relating to or affecting the employment of his or her employees who are represented by a trade union or federation of trade unions which a member of the council, and of ascertaining whether or not the terms of any relevant Collective Bargaining Agreement and regulations are being followed;

(b) enter any premises of an employer for which the Council is registered for the purposes of conducting any search therein, where there are reasonable grounds for believing that such entry or search is necessary for the prevention, investigation or detection of an offence in terms of the Act or this agreement or for the seizure of any property which is the subject of an offence in terms of the Act or this agreement.

(2)—

(a) any dispute or unfair labour practice which constitutes a dispute of right shall be determined by the designated agent after hearing the parties concerned:

Provided that where the parties agree to such a course, the designated agent may determine the matter on written submissions filed by both parties without conducting an oral hearing;

(b) for the avoidance of doubt, where a party to the dispute requests for an oral hearing, it shall be improper for the designated agent to determine the matter on papers.

(3) The determination by the designated agent shall be communicated to the parties in writing.

(4)—

(a) in respect of a dispute of interest, the designated agent shall attempt to resolve or redress the dispute through conciliation first and where a Certificate of No Settlement is issued, Part XII of the Act shall apply;

(b) where a Certificate of Settlement is issued, it shall have the same effect as a determination made in terms of subsection 2.

(5) Where the designated agent discovers a breach of right through his or her inspection of workplaces, he or she may issue an order directing the defaulting party to take corrective action. The order shall clearly indicate the defaulting party and the person or persons affected by the breach.

(6) The order issued in terms of subsection (5) shall provide for the rectification of the breach by the defaulting party within a period specified in the order.

(7) In determining the period within which the defaulting party is to rectify the breach, the designated agent shall take into consideration and shall be guided by the following factors—

(a) the nature of the breach;

(b) the urgency of the matter;

(c) the attitude of the defaulting party; or

(d) whether or not the breach poses an imminent danger to the health or safety of any person or persons concerned at the workplace.

(8) An order made by the designated agent shall have the same effect as a determination made in terms of subsection (2).

(9) Any party aggrieved by the determination or order made by the designated agent may appeal to the Labour Court in terms of the Act and the Labour Court Rules.

(10) A designated agent shall keep a proper record or summary of proceedings or decisions taken in terms of this section which record or summary shall be made at the time such proceedings and decisions are taken. The record shall contain at least the following—

(a) the names of the parties;

(b) the names of their lawyers (if any);

(c) a statement of the claim or alleged breach;

(d) a statement of the relief sought;

(e) a summary of any other issues between the parties as agreed by them;

(f) the names of the witnesses and a summary of their evidence;

(g) a record of questions and answers in cross-examination and re-examination;

(h) a record of documentary or other exhibits produced; and

(i) a judgment, that is, a conclusion on the evidence, accompanied by an explanation of how and why that conclusion was reached, which witnesses were disbelieved and which provisions of the law were found to be applicable.

(11) A designated agent shall keep a record of proceedings of each case for a period of twelve (12) months from the date the decision is made.

(12) A party to whom a settlement, decision, order or determination relates may submit for registration the copy of it furnished to him or her by the designated agent to the Court of any magistrate which would have had jurisdiction to make the order had the matter been determined by it, or, if the decision, order or determination exceeds the jurisdiction of any Magistrates Court, the High Court.

(13) Where a settlement, decision, order or determination has been registered in terms of subsection 10 it shall have the effect, for purposes of enforcement, of a civil judgment of the appropriate court.".

2. The principal agreement is amended by the insertion after section 32 of the following sections—

"*Dispute settlement*

32A. (1)Where the parties to a dispute before a designated agent settle the dispute on their own, the designated agent shall require the parties to furnish him or her with a written agreement disposing of the dispute.

(2) Upon receipt of the agreement referred to in subsection (1), the designated agent shall issue a consent determination and serve each party with a copy of the determination.

(3) Where the agreement by the parties in dispute partially settles the dispute(s) between the parties, the designated agent shall issue a consent determination covering the agreed issue(s) and deal with the balance of issues as contested, and such contested issues shall in that event be in all subsequent respects action for such contested issues only.

*Code of ethics*

32B. (1) It shall be the duty of every designated agent to act in such a manner as to ensure that —

(a) impartiality and principles of natural justice are observed at all times;

(b) he or she discloses to the parties any current or past managerial, representational, or consultative relationship with any employer or employers' organisation, trade union or a federation that is involved in the dispute at hand;

(c) all pre-hearing matters are handled in a manner that fosters complete impartiality;

(d) a fair and adequate hearing which assures that both parties have sufficient opportunity to present their case is held and that where written submissions are made, to ensure that these are exchanged between the parties and that each party is given a reasonable opportunity to make counter submissions;

(e) the hearing process is conducted so as to advance the fair and efficient resolution of the matter(s) submitted for decision, including making all reasonable efforts to prevent delaying tactics, harassment of parties or other participants or other abuse or disruptions being practiced;

(f) he or she discharges duties with propriety without being influenced by—

(i) any partisan interest, or public clamour;

(ii) family, personal, social, political or other interests.

(2) Upon reaching a decision on the matter at hand, it is not proper for a designated agent to inform anyone of any decision in advance of the time it is given to all parties.

*Representation of parties*

32C. (1) Subject to the provisions of the Act, a party to a matter before a designated agent may be represented by—

(a) a fellow employee; or

(b) an official of a registered trade union or employer's organisation; or

(c) a legal practitioner".